

Rules Under Section 10 of the U.P. National Parks Act, 1935

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State of Uttar Pradesh - Act

Rules Under Section 10 of the U.P. National Parks Act, 1935

UTTAR PRADESH

India

Rules Under Section 10 of the U.P. National Parks Act, 1935

Rule RULES-UNDER-SECTION-10-OF-THE-U-P-NATIONAL-PARKS-ACT-1935 of 1935

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Rules Under Section 10 of the U.P. National Parks Act, 1935

1.

No person may enter the park without a permit in the form given in Appendix A and subject to the conditions thereon, provided that no such permit shall be necessary in the case of-

(a)

Government officials travelling on duty;

(b)

Forest contractors who have works within the area of the park, their agents and employees, subject to any conditions contained in their contract-deeds; and

(c)

Bona fide travellers (without weapons or traps) proceeding along any road or path, which is normally used by travellers.

Such permits may, subject to the control of the Conservator of Forests Western Circle, be issued by the Divisional Forest Officers of the Ramnagar and Kalagarh Divisions.

2.

No permit under Rule 1 shall be issued during the period 1st June to 31st October. Nothing, however, in this rule shall be taken to prevent the classes of person exempted under Rule 1 from the necessity of taxing out a permit from entering the park at any time.

3.

Should the Chief Conservator of Forest grant permission under Section 9 (b) of the Act for the destruction of any animal or should any dangerous animal be killed within the park in defence of human life, the skin, horns and all other parts of the animals so destroyed shall remain the property of Government and shall not become the property of the individual responsible for the destruction of the animal and shall be disposed of in such manner as the Chief Conservator of Forests may direct.

4.

No product from within the park whether animal, vegetable or mineral shall be taken away, sold or disposed of in any way whatsoever without the permission in writing of the Chief Conservator of Forests, subject to the proviso that vegetable or mineral products may be disposed of by forest officers having jurisdiction in the park, subject to the prescriptions of the sanctioned working plans and in accordance with the standard rules of the Forest Department.

5.

The firing of a gun except in defence of human life is prohibited.

6.

The taking of flash light photographs is forbidden.

7.

No person other than those exempted under Rule 1 from the necessity of taking a permit shall enter the park by any point of entry or travel in the park by any route other than the points of entry and routes laid down on the permit issued to him under Rule 1 above.

8.

No person shall destroy or damage, or deface, by writing or otherwise, any tree, bridge, rock, fence, seat or other object in the park.

9.

The Conservator of Forests, Western Circle, and the Divisional Forest Officers of the Ramnagar and Kalagarh Divisions within their respective charges are hereby invested with the powers contained in Sections 64 to 68 of the Indian Forest Act, 1927 in respect of any offence punishable under Section 11 of the National Parks Act; provided always that the deliberate killing, injuring or capturing of any animal, otherwise than in defence of human life or with the permission of the Chief Conservator of Forests given under Section 9 (b) of the Act, shall be an offence for which compensation shall not be accepted.

Conditions under which a permit under Rule 1 is issued

1. This permit is personal and not transferable.

2. This permit must be produced at any time on demand by any forest or police officer on duty.

3. This permit may be cancelled at any time by the Conservator of Forest, Western Circle, or Divisional Forest Officer concerned, and the permit-holder and his party shall immediately withdraw from the park should they receive a written order to do so from either of the aforesaid officers.

4. The holder of this permit and his party shall encamp only on camping grounds entered on the permit, or pointed out to him by a Forest Officer.

5. The holder of this permit shall not bring into the park more than the maximum number of persons, whether friends, retainers, followers or otherwise entered on the permit.

6. The holder of this permit shall not kill, injure, capture or disturb any wild animal within area of the park.

7. The holder of this permit and his party shall not enter the park by any point of entry or travel in the park by any route other than a point of entry or route laid down on this permit and he will adhere to such route or routes throughout his stay in the park.

8. The holder of this permit shall not take into the park any firearm or ammunition therefor or any other instrument capable of propelling a projectile or capable of being propelled in such manner that any animal can be killed or injured

thereby, subject to the proviso that any such firearm, ammunition or, other instrument may be taken into the park if it is declared at the forest Chauki at the point of entry into the park. If so declared it or they shall be sealed by the forest officer with a Government seal. In such an event the holder of the permit when leaving the park shall be required to produce the articles so sealed for inspection, with the Government seal unbroken.

9. The holder of this permit may take a camera into the park subject to the condition that no photographic or other flashlight apparatus may be taken into the park, as such apparatus is liable to alarm wild animals. In no case will beating or diving game for photographic or other purposes be allowed.

10.

For the present no fees are being charged.

11.

The holder of this permits personally responsible for any infringement of its conditions or of the Indian Forest Act or of the National Parks Act or of any rule made under either Act and in the event of any such infringement renders himself liable, in addition to the cancellation of this permit to penalties under either or both of the above Acts or under any other Act that may be in force.

12.

The holder of this permit on vacating the park, shall return the permit to such official as may be named in it after entering in it any infringement of the laws or rules that may have been committed by him or by any of his party, whether friends, retainers, followers or otherwise.

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